

STATE OF NORTH CAROLINA

File No.

2004CR000000118844-A

Scan No.(s)

New Hanover County

In The General Court Of Justice

☐ District ☐ Superior Court Division

STATE VERSUS

Name And Address Of Petitioner (type or print full name)

Maria-Alejandra O'Shaughnessy-Whitfield
1188 Upper Yadkin River Crossing Road, Apartment 14B

Winston-Salem

NC 27101-2214

Drivers License No.

State

Race

Sex

Date Of Birth

1968-12-31

Full Social Security No.

Age At Time Of Offense

PETITION AND ORDER OF EXPUNCTION
UNDER G.S. 15A-146(a) OR G.S. 15A-146(a1)
(CHARGE(S) DISMISSED)

G.S. 15A-146, 15A-150

Name And Address Of Petitioner's Attorney For Expunction Petition

NOTE TO PETITIONER: List the arresting agency and any State or local government agency that has a record of your case. You **must** provide complete information for each agency. The clerk of superior court will send a copy of this order, if granted, to the agency name(s) and address(es) provided below. The clerk will **not** provide addresses for you. Do not list the courts, the State Bureau of Investigation, the Department of Adult Correction, or the Division of Motor Vehicles; if the order is granted, those agencies will be notified automatically. Do not list any private entity, like a company that provides criminal background checks. The clerk will not send a copy of this order to any entity that is not an agency of the State of North Carolina or one of its local governments. A private entity required to expunge records will be notified directly by the State or local agencies that distribute criminal justice information to that entity.

Name And Address Of Arresting Agency

Name And Address Of Other Agency (if any)

Name And Address Of Other Agency (if any)

☐ Check here to indicate that additional agencies and/or additional file nos. and offenses are listed on an AOC-CR-285 form that is attached to this petition. (attach form)

File No.(s)	Date Of Arrest	Offense Description	Date Of Offense	Date Of Dismissal

PETITION TO EXPUNGE

I hereby petition for an expunction pursuant to G.S. 15A-146(a) or (a1) and certify as follows:

- In this court of the county named above I was charged with (a) misdemeanor(s) or felony(ies) (or an infraction under G.S. 18B-302(i) prior to December 1, 1999), the file number(s) of which is/are set out above.
- The charge(s) listed above was/were disposed of by a dismissal that was not a G.S. 15A-1008 dismissal for lack of capacity to proceed.
- (if you are petitioning to expunge multiple dismissals under G.S. 15A-146(a1), check one of the following)

☐ a. I was charged with multiple offenses, and all of the charges were dismissed. I therefore am requesting the expunction of all the charges.

☐ b. I was charged with multiple offenses, and while the charges listed above were dismissed, the following charges resulted in a conviction on the day of the dismissal or had not yet reached final disposition: _____

_____ (insert file no.(s) and offense description(s) of charges that were not dismissed). I therefore am requesting the expunction only of the dismissed charges listed above, and not all of the charges.

☐ 4. There is a civil revocation record that resulted from the offense(s) I am seeking to expunge.

I certify that this petition has been filed in this case and that the information set forth above is a complete and accurate statement of the information on file in the office of the clerk of superior court.

☐ No charge listed above was dismissed as the result of compliance with a deferred prosecution agreement or a conditional discharge and dismissal.

NOTE TO CLERK: If this box is checked, do not assess the \$175.00 fee.

Date	Name (type or print)	Signature	☐ Petitioner ☐ Petitioner's Attorney
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(Over)

AOC-CR-287, Rev. 12/25 (replaced AOC-CR-264 for G.S. 15A-146(a) and (a1) petitions)

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FINDINGS OF FACT

The Court makes the following findings of fact:

1. Petitioner was charged with those offenses indicated in the table on Side One.
2. Said charges were disposed of by a dismissal that was not a G.S. 15A-1008 dismissal for lack of capacity to proceed.
3. (If the defendant was charged with multiple offenses, check one of the following)

- ☐ a. The defendant was charged with multiple offenses, and all of the charges were dismissed.
- ☐ b. The defendant was charged with multiple offenses, and while the charges listed in the table on Side One were dismissed, there were additional charges that resulted in a conviction on the day of the dismissal or had not yet reached final disposition.

NOTE TO COURT: "If a person is charged with multiple offenses and any charges are dismissed, then that person or the district attorney may petition to have each of the dismissed charges expunged. If the court finds that all of the charges were dismissed, the court shall order the expunction. If the court finds that any charge resulted in a conviction on the day of the dismissal or had not yet reached final disposition, the court may order the expunction of any charge that was dismissed." G.S. 15A-146(a1).

- ☐ 4. There is a civil revocation record that resulted from the offense(s) the petitioner is seeking to expunge.
5. Expunction of the dismissed offense(s) listed on Side One ☐ should ☐ should not be granted. If not, it is because:

ORDER**Therefore, the Court hereby ORDERS:**

- ☐ 1. The petition is granted. It is ordered that any and all entries relating to the petitioner's apprehension, charge, trial, or conviction and any civil revocation of his/her drivers license resulting from the dismissed criminal charge shall be expunged from the records of the court. All law enforcement agencies, the Department of Adult Correction, the Division of Motor Vehicles, and any other State or local government agency identified on Side One and on any AOC-CR-285 form that is attached to this petition shall expunge from all official records any entries relating to the person's charge, conviction, if any, and any civil revocation of his/her drivers license resulting from the dismissed criminal charge. No agency shall expunge a record of a civil revocation entered pursuant to G.S. 20-16.2, no agency shall expunge a record of a civil revocation prior to the final disposition of any pending civil or criminal charge based upon the civil revocation, and the Division of Motor Vehicles shall not expunge records for which expunction is otherwise prohibited by G.S. 15A-151.
- ☐ 2. For the reason(s) identified in Finding No. 5, the petition is denied.

NOTE TO CLERK: If denied, file this Order in the case file. Upon expiration of the deadline for appeal from a denial of this Order, destroy any documentation provided with the petition, such as a criminal history report. If granted, send a certified copy of this Order to the petitioner at the address listed on Side One or an updated address as provided by the petitioner.

Date	Name Of Presiding Judge (type or print)	Signature Of Presiding Judge
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CERTIFICATION BY CLERK

I hereby certify that this form is a true and complete copy of the original in this case, and if granted, a certified copy of this Order was sent on the date shown below to the petitioner, the State Bureau of Investigation, the Department of Adult Correction, the Division of Motor Vehicles, and to the arresting agency and any other State or local government agency identified on Side One and on any attachment to this petition.

Date	Name (type or print)	Signature Of Clerk	☐ Dep. CSC ☐ Asst. CSC ☐ Clerk Of Superior Court	SEAL
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NOTE TO CLERK: If granted, **always** send a certified copy of this Order under seal to the petitioner, to **all** the agencies listed in Certification By Clerk above, and to the NCAOC. Send copies for the arresting agency and additional agencies to the addresses provided by the petitioner. Send SBI, DAC, DMV, and NCAOC copies to:

State Bureau of Investigation Attn: Expunction Unit 3320 Garner Road Raleigh, NC 27610	NC Department of Adult Correction Attn: Combined Records Section 4226 Mail Service Center Raleigh, NC 27699-4226	NC Division of Motor Vehicles, Driver and Vehicle Services, Driver Assistance Branch Attn: Hearings/Adjudication Unit 3118 Mail Service Center Raleigh, NC 27699-3118	NC Administrative Office of the Courts Attn: Records Officer PO Box 2448 Raleigh, NC 27602
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NOTE TO PETITIONER: If this petition is granted, the clerk of superior court will send you a certified copy of the final order for your records at the address listed on Side One. If you move, you must notify the clerk in writing of your change of address in order to receive a certified copy. After the case is expunged, the clerk of superior court will have no record of the case and will be unable to provide you with any documentation of the case. This includes the expunction order; it will be destroyed with the case file.

**INSTRUCTIONS FOR PETITION AND ORDER OF EXPUNCTION
UNDER G.S. 15A-146(a) OR G.S. 15A-146(a1) (CHARGE(S) DISMISSED)
FORM AOC-CR-287, Rev. 12/25**

The procedure for completion of the AOC-CR-287, Petition And Order Of Expunction Under G.S. 15A-146(a) or G.S. 15A-146(a1), is as follows:

1. **Print clearly and legibly, using only black ink.** If you wish to submit a typed petition, the form is available electronically on the NCAOC's website at www.nccourts.gov/documents/forms. In the "Contains" field, enter the number of the petition, AOC-CR-287. Searching by the form number will provide you with a link to a fillable PDF version of the form.
2. No order should be entered until the form has been completed and signed by the petitioner.
3. The petitioner or attorney should complete all offense information on Side One of the form from the court file. Please pay special attention to correctly identifying the arresting agency(ies) and any other State or local agency that has a record of the case. Do not list the courts, the State Bureau of Investigation, the Department of Adult Correction, or the Division of Motor Vehicles; if the order is granted, those agencies will be notified automatically. Do not list any private entity, like a company that provides criminal background checks. The clerk will **not** send a copy of the order to any entity that is not an agency of the State of North Carolina or one of its local governments. A private entity required to expunge records will be notified directly by the State or local agencies that distribute criminal justice information to that entity.
4. A fee of \$175.00 must be paid to the clerk at the time the petition is filed. There is no fee for an expunction if the charge was dismissed for any reason other than compliance with a deferred prosecution agreement or a conditional discharge and dismissal.
5. If an order of expunction is entered, the clerk makes copies of the order, completes "Certification By Clerk" on each copy, and sends certified copies to the petitioner, the State Bureau of Investigation, the Department of Adult Correction, the Division of Motor Vehicles, the arresting agency and any other State or local government agency identified on the petition, and the NCAOC.
NOTE: The clerk of superior court will send you a certified copy of the final order. If you move, you must notify the clerk in writing of your change of address in order to receive a certified copy. After the case is expunged, the clerk will have no record of the case and will be unable to provide any documentation of the case. This includes the expunction order; it will be destroyed with the case file.
6. The clerk retains the original order of expunction to be disposed of with the papers in this case.
7. If the petition is denied, the clerk will retain the original of the denied petition, but any information from the SBI or NCAOC shall be destroyed, unless the court orders otherwise.

NOTE TO PETITIONER: *The expunction of your case information from the records of the court and of other State and local government agencies does not guarantee that the information will be expunged from all other sources. Private companies routinely acquire copies of criminal records from State and local criminal justice agencies. Certain private entities are required to expunge your case information upon receiving notice of the expunction order, but there may be a delay between entry of the order of expunction and deletion from the entity's records. Further, that duty to expunge does not apply to all private entities. If a private entity distributes information about your expunged case, contact the private entity to determine which government agency was the source of the information, and then contact that government agency to determine whether or not the expunction order was received. If the private entity claims that the NCAOC was the source of the information, contact the NCAOC's Remote Public Access office at rpa@nccourts.org or (919) 890-2220 to investigate the entity's claim.*

STATE OF NORTH CAROLINA

File No.

2004CR000000118844-A

New Hanover County

In The General Court Of Justice

☐ District ☐ Superior Court Division

Name Of Plaintiff

VERSUS

Name Of Defendant

Maria-Alejandra O'Shaughnessy-Whitfield

PETITION TO PROCEED
AS AN INDIGENT

G.S. 1-110; 7A-228

AFFIDAVIT

(check one of the four boxes below)

☐ **Petition To Assert Claims** - As a party in the above entitled action, I affirm that I am financially unable to advance the required costs for the prosecution of the claims I have asserted. Therefore, I now petition the Court for an order allowing me to assert my claims as an indigent.☐ I am an inmate in the custody of the Division of Prisons of the Department of Adult Correction.

(NOTE TO CLERK: If this block is checked, this Petition must be submitted to a Superior Court Judge for disposition provided on the reverse.)

☐ **Petition To File Motions** - As a party in the above entitled action, I affirm that I am financially unable to advance the required costs to file a notice of hearing on a motion. Therefore, I now petition the Court for an order allowing me to file my motion as an indigent.☐ **Petition To Appeal** - As the individual appellant in the above entitled small claims action, I affirm that I am financially unable to pay the cost for the appeal of this action from small claims to district court. Therefore, I now petition the Court for an order allowing me to appeal this action to district court as an indigent.☒ **Petition To File Expunction Petition** - As the petitioner in the above entitled action, I affirm that I am financially unable to advance the required costs to file an expunction petition. Therefore, I now petition the Court for an order allowing me to file my expunction petition as an indigent.

(check one or more of the boxes below as applicable)

☐ I am presently a recipient of☐ Supplemental Nutrition Assistance Program (SNAP/food stamps).☐ Temporary Assistance for Needy Families (TANF).☐ Supplemental Security Income (SSI).☐ I am represented by a legal services organization that has as its primary purpose the furnishing of legal services to indigent persons, or I am represented by private counsel working on behalf of such a legal services organization. (Attach a letter from your legal services attorney or have your attorney sign the certificate below.)☐ Although I am not a recipient of SNAP/food stamps, TANF, or SSI, nor am I represented by legal services, I am financially unable to advance the costs of filing this action or appeal.

SWORN/AFFIRMED AND SUBSCRIBED TO BEFORE ME

Date

Date

Signature

Signature Of Petitioner

Title Of Person Authorized To Administer Oaths

Name And Address Of Petitioner (type or print)

Maria-Alejandra O'Shaughnessy-Whitfield

1188 Upper Yadkin River Crossing Road, Apartment 14B

SEAL

Date Commission Expires

Winston-Salem

NC 27101-2214

CERTIFICATE OF LEGAL SERVICES/PRO BONO REPRESENTATION

I certify that the above named petitioner is represented by a legal services organization that has as its primary purpose the furnishing of legal services to indigent persons or is represented by private counsel working on behalf of or under the auspices of such legal services organization.

Date

Signature

Name And Address (type or print)

ORDER

Based on the Affidavit appearing above, it is ORDERED that:

☐ the petitioner is authorized to assert claims or to file notices of hearing or petitions in this action as an indigent.☐ the petition is denied.

Date

Signature

☐ Assistant CSC☐ Clerk Of Superior Court☐ Judge**NOTE TO CLERK:** If the petitioner is NOT a recipient of SNAP/food stamps, TANF, SSI or is NOT represented by legal services or a private attorney on behalf of legal services, you may ask for additional financial information to determine whether the petitioner is unable to pay the costs.

(Over)

ORDER - APPEAL FROM MAGISTRATE JUDGMENT IN SMALL CLAIMS ACTION

The undersigned considered the following information and evidence in addition to the Affidavit appearing above:

(choose 1 or 2 if authorizing the petitioner to appeal as an indigent)

- ☐ 1. The Court finds that the petitioner is unable to pay the costs of appeal and meets the following criteria listed in G.S. 1-110(a):
- ☐ Petitioner receives electronic food and nutrition benefits.
 - ☐ Petitioner receives Work First Family Assistance.
 - ☐ Petitioner receives Supplemental Security Income (SSI).
 - ☐ Petitioner is represented by a legal services organization that has as its primary purpose the furnishing of legal services to indigent persons.
 - ☐ Petitioner is represented by private counsel working on the behalf of or under the auspices of a legal services organization that has as its primary purpose the furnishing of legal services to indigent persons.
- ☐ 2. The Court finds that the petitioner does not meet any of the criteria listed in G.S. 1-110(a), but is unable to pay the costs of appeal based on the following:

Based on the Affidavit and findings appearing above, it is ORDERED that:

- ☐ the petitioner is authorized to appeal in this small claims action as an indigent.
- ☐ the petition is denied.

Date	Signature	☐ Assistant CSC	☐ Clerk Of Superior Court
		☐ Judge	☐ Magistrate

ORDER - DIVISION OF PRISONS INMATES

The undersigned superior court judge of this district finds that the petitioner is an inmate in the custody of the Division of Prisons of the Department of Adult Correction and that the complaint

- ☐ is not frivolous.
- ☐ is frivolous.

It is ORDERED that

- ☐ the petitioner is authorized to sue in this action as an indigent.
- ☐ the petitioner is not authorized to sue as an indigent.
- ☐ the action is dismissed.

Date	Name Of Superior Court Judge (type or print)	Signature Of Superior Court Judge
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CERTIFICATION

I certify that this Petition has been served on the party named by depositing a copy in a post-paid properly addressed envelope in a post office or official depository under the exclusive care and custody of the United States Postal Service.

Date	Signature	☐ Deputy CSC	☐ Assistant CSC	☐ Clerk Of Superior Court
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NOTE: G.S. 1-110(b) provides: "The clerk of superior court shall serve a copy of the order of dismissal upon the prison inmate."

LEGALEASE COMPLETION GUIDE - NOT AN OFFICIAL COURT FORM

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

An ordinary qualifying dismissal under G.S. 15A-146 has no filing fee. The \$175 fee concerns a dismissal after deferred prosecution or conditional discharge. Those cases retain this product's legal-review stop; a fee selection does not decide eligibility or remove that stop.

When a fee applies and you ask to proceed as an indigent, the selected packet includes AOC-G-106, Petition To Proceed As An Indigent (Rev. 11/24). The court decides your request. The Expunction Petition purpose is marked because this is an expunction request, not because indigency has been granted.

Check only the benefit, representation or financial-inability statement that is true for you. Sponsorship, free access, or a clinic access code establishes none of those facts. Complete the required personal information. Follow G-106's sworn/affirmed execution before the authorized oath officer; do not pre-sign it. Provider certifications and court findings, signatures and orders remain blank.

AOC-CV-226, Petition To Proceed As An Indigent / Civil Affidavit Of Indigency (Rev. 4/23), is not a substitute for G-106. It is included only when the court has specifically requested supplemental financial information and that request is recorded. The source has civil/arbitration wording; do not sign an inapplicable oath. Ask the court for an appropriate affidavit or directions before signing any statement that does not describe your request.

The no-fee and fee-paid branches contain neither G-106 nor CV-226. An indigency-requested branch contains G-106 alone unless supplemental financial information is specifically requested. Do not submit unused alternatives or a sample fixture as your own sworn statement.

Before filing: verify the county and existing case number; complete all five columns of every charge row from your court records. Check the correct existing division and truthful certifications. Sign and date only your own blocks. Leave court, clerk, provider and oath-officer entries to those actors.

For G-106: confirm the plaintiff caption, personal details, division and actual indigency basis. Expunction Petition is the selected purpose only. No benefit, legal-services representation or court approval is inferred.

Do not continue self-help on: a felony dismissed under a plea agreement, an incapable-to-proceed dismissal, a deferred-prosecution/conditional-discharge case, sequencing involving 15A-145.4 or 15A-145.6, DNA expunction, or immigration matters. Obtain legal review. The fee-branch examples demonstrate components, not clearance of these stops.

File an otherwise qualifying petition with the clerk of superior court in the county where the charge was brought. Keep charging/disposition records before filing and review the official instruction sheet. The clerk distributes a granted order; do not sign a court finding or certification.